

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 43-006
Amendment to Title 2, Chapter 10, Article A of the Chickasaw Nation Code
(Tribal Boards, Commissions and Agencies)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Governor Bill Anoatubby is authorized to enter into, negotiate, modify, amend and sign grants, contracts and other agreements on behalf of the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for tribal boards, commissions and agencies, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 2, Chapter 10, Article A, Section, 2-1001.3 A, B and C of the Chickasaw Nation Code, all other sections and parts of sections remain the same (additions are shown in red, deletions are stricken through):

SECTION 2-1001.1 **APPLICABILITY OF THIS ARTICLE.**

The provisions of this Article shall apply to all members of all boards, agencies and commissions created by act of the Chickasaw Tribal Legislature or by act of the Governor; provided, that such positions shall be subject to the provisions of this Article only if such positions are appointed by the Governor with the advice and consent of the Legislature in accordance with the provisions of Article XI, Section 2 of the Constitution.

SECTION 2-1001.2 **WRITTEN OATH OF OFFICE.**

All members of all boards, agencies and commissions, to which this Article shall apply, shall, upon the date of assuming their position as a member of that board, agency or commission, herein defined as the date of the first official meeting of that board, agency or commission after such member has been appointed by the Governor subject to the advice and consent of the

Chickasaw Tribal Legislature and which they attend, shall file in the Office of the Governor or a written and signed Oath of Office, the wording of which shall be:

“I (name), do solemnly swear (or affirm) that I will support, obey and defend the Constitutions of the Chickasaw Nation and the United States of America, and will discharge the duties of my office with fidelity, so help me God.”

Such Oath of Office shall contain a place for that member to sign his or her name. Each such Oath of Office shall be dated with the date on which it is signed, and attested to by no fewer than two (2) witnesses. Copies of each such Oath of Office shall be retained in special files created for such purposes and maintained in the Office of the Governor. An Oath of Office shall be administered for each member of each board, agency or commission and for each term of appointment. If a person serves on more than one board, agency or commission, an Oath of Office must be completed for each such office held. Existing written and signed Oaths of Office forms already on file at the time of the adoption of this Act shall be considered fully executed for purposes of this Section.

SECTION 2-1001.3

COMPENSATION PAYMENT.

A. Each **non-employee** member of an official board, commission or agency of the Chickasaw Nation to which the provisions of this Article shall apply as contained and defined in Section 2-1001.1, shall be eligible for **compensation payment** in the form of per diem and travel expenses as are normally allowed for regular, full-time employees of the Chickasaw Nation.

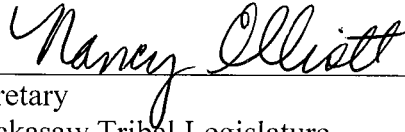
B. However, any **Any** time that such board, commission or agency shall meet to conduct its regular or special meetings, all **attending** members shall be entitled to **reimbursement for expenses in accordance with Executive Department travel policies.** ~~travel expenses and per diem at the rate normally allowed for travel or per diem in the area in which the meeting is conducted, regardless of the amount of time required for such meeting.~~

C. Members of boards, commissions and agencies which are, as a course of their normal duties and/or functions, involved in meetings or tasks ~~which last longer than four (4) consecutive hours, allowing for normal breaks for meals or other purposes,~~ are entitled to ~~compensation~~ **an additional payment in the form of a stipend** for their time, **which shall be equivalent to an hourly rate as approved by the Governor,** ~~at the rate of fifteen dollars (\$15) per hour,~~ in addition to any ~~compensation~~ **payment** which might be received in the form of per diem and travel expenses. The administrative staff assigned to each such board, agency or commission shall be responsible for completion of paperwork for such ~~compensation~~ **payment** in accordance with the normal procedures used for regular, full-time tribal employees. Should no such staff be assigned to such board, agency or commission, the office of the Governor shall provide such services for those affected members. (PR13-18, 9/20/96; PR27-004, 7/16/10)

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on April 17, 2026, by a vote of 11 ayes, 0 nays, and 0 abstentions.

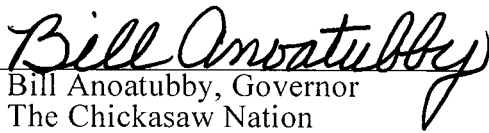


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date:

APR 20 2026

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 43-006
Amendment to Title 2, Chapter 10, Article A of the Chickasaw Nation Code
(Tribal Boards, Commissions and Agencies)

Explanation:

This Resolution makes changes to Section 2-1001.3 that deletes language that may suggest that members of boards, commissions and agencies are or should be treated as employees. The resolution eliminates the set hourly rate for payments made for official tasks performed in excess of four hours and instead provides for an additional payment in the form of a stipend set at an hourly rate approved by the Governor.

Our intent is to start using the pay scale at a range of L6 at \$20 per hour and periodically adjust as necessary up to a limit of L8 at \$37 per hour which should be adequate well into the future. Governor will be issuing an Executive Order setting the pay rate. Current pay for boards is \$15 an hour per statute.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature